

The Railway Accidents And Untoward Incidents (Compensation) Rules, 1990

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The Railway Accidents And Untoward Incidents (Compensation) Rules, 1990

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The Railway Accidents And Untoward Incidents (Compensation) Rules, 1990

Rule THE-RAILWAY-ACCIDENTS-AND-UNTOWARD-INCIDENTS-COMPENSATION-RULES-1990 of 1990

Published on 7 June 1990

Commenced on 7 June 1990

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The Railway Accidents And Untoward Incidents (Compensation) Rules, 1990

Published vide Notification G.S.R. 552(E), dated 7.6.1990, published in the Gazette of India, Extraordinary, Part 2, Section 3(i), dated 7.6.1990.

21.

/935

In exercise of the powers conferred by section 129 of the Railways Act, 1989 (

24 of 1989

) read with section 22 of the General Clauses Act, 1897 (

10 of 1897

) and in supersession of the Railway Accidents (Compensation) Rules, 1989 except in respect of things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

Preliminary

1.

Short title and commencement

-(1) These rules may be called The [Rail-way Accidents and Untoward Incidents]

[Substituted by G.S.R. 592(E), dated 21-7-1994 (w.e.f. 1-8-1994).]

(Compensation) Rules, 1990.

(2)

They shall come into force on the date of commencement of the Act.

2.

Definitions

.- (1) In these rules, unless the context otherwise re-quires,-

(1)

(a)

"accident" means an accident of the nature described in section 124 of the Act;

(b)

"Act" means the Railways Act, 1989 (

24 of 1989

);

(c)

"Claims Tribunal" means the Railway Claims Tribunal estab-lished under section 3 of the Railway Claims Tribunal Act,

1987 (

54 of 1987

);

(d)

"Schedule" means the Schedule to these rules; and

(e)

["untoward incident" means an incident defined in clause (c) of section 123 of the Act.]

[Substituted by G.S.R. 592(E), dated 21-7-1994 (w.e.f. 1-8-1994).]

(2)

[The words used and not defined in these rules but defined in the Act shall have the meanings respectively assigned to them in that Act.]

[Rule 2 renumbered as sub-Rule (1) thereof and Sub-Rule (2) inserted by G.S.R. 592(E), dated 21-7-1994 (w.e.f. 1-8-1994).]

Claims For Compensation

3.

Amount of compensation

-(1) The amount of compensation payable in respect of death for injuries, shall be as specified in the Schedule.

(2)

The amount of compensation payable for an injury not specified in Part II or Part III of the Schedule but which, in the opinion of the Claims Tribunal, is such as to deprive a person of all capacity to do any work, shall be [rupees eight lakhs]

[Substituted by G.S.R. 1165(E), dated 22.12.2016, 'rupees four lakhs' (w.e.f. 7.6.1990).]

.

(3)

The amount of compensation payable in respect of any injury (other than an injury specified in the Schedule or referred to in sub-rule (2) resulting in pain and suffering), shall be such as Claims Tribunal may after taking into consideration medical evidence, besides other circumstances of the case, determine to be reasonable:

Provided that if more than one injury is caused by the same accident, compensation shall be payable in respect of each such injury:

Provided further that the total compensation in respect of all such injuries shall not exceed [rupees one lakh sixty

thousand]

[Substituted by G.S.R. 1165(E), dated 22.12.2016, 'rupees four lakhs' (w.e.f. 7.6.1990).]

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(4)

Where compensation has been paid for any injury which is less than the amount which would have been payable as compensation if the injured person had died and the person subsequently dies as a result of the injury, a further compensation equal to the difference between the amount payable for death and the already paid shall become payable.

(5)

Compensation for loss, destruction or deterioration of goods or animals shall be paid to such extent as the Claims Tribunal may, in all the circumstances of the case, determine to be reasonable.

4.

Limit of compensation

.-Notwithstanding anything contained in rule 3, the total compensation payable under that rule shall in no case exceed [rupees eight lakhs]

[Substituted by G.S.R. 1165(E), dated 22.12.2016, 'rupees four lakhs' (w.e.f. 7.6.1990).]

in respect of any one person.

[Schedule]

[Substituted by Notification No. G.S.R. 1165(E), dated 22.12.2016, (w.e.f. 7.6.1990).]

(See Rule 3)

Amount of Compensation Payable in respect of Death and Injuries

Part I

Amount of Compensation(in rupees)

For death

8,00,000

PART II

(1)

For loss of both hands or amputation at higher sites.

8,00,000

(2)

For loss of hand and a foot.

8,00,000

(3)

For double amputation through leg or thigh or amputation through leg or thigh on one side and loss of other foot.

8,00,000

(4)

For loss of sight to such an extent as to render the claimant unable to perform any work for which eye sight is essential.

8,00,000

(5)

For very sever facial disfigurement.

8,00,000

(6)

For absolute deafness.

8,00,000

Part III

(1)

For amputation through shoulder joint.

7,20,000

(2)

For amputation below shoulder with stump less than 8"
from tip of acromion.

6,40,000

(3)

For amputation from 8" from tip of acromion to less than
4 ½" below tip of olecranon.

5,60,000

(4)

For loss of a hand or the thumb and four fingers of one hand
or amputation from 4 ½ " below space tip of
olecranon.

4,80,000

(5)

For loss of thumb.

2,40,000

(6)

For loss of thumb and its metacarpal bone.

3,20,000

(7)

For loss of four fingers of one hand.

4,00,000

(8)

For loss of three fingers of one hand.

2,40,000

(9)

For loss of two fingers of one hand.

1,60,000

(10)

For loss of terminal phalanx of thumb.

1,60,000

(11)

For amputation of both feet resulting in end bearing stumps.

7,20,000

(12)

For amputation through both feet proximal to the
metatarso-phalangeal joint.

6,40,000

(13)

For loss of all toes of both feet through the
metatarso-phalangeal joint.

3,20,000

(14)

For loss of all toes of both feet proximal to the proximal
interphalangeal joint.

2,40,000

(15)

For loss of all toes of both feet distal to the proximal
inter-phalangeal joint.

1,60,000

(16)

For amputation at hip.

7,20,000

(17)

For amputation below hip with stump not exceeding 5" in length measured from tip of great trochanter but not beyond middle thigh.

6,40,000

(18)

For amputation below hip with stump exceeding 5" in length measured from tip to great trochanter but not beyond middle thigh.

5,60,000

(19)

For amputation below middle thigh to 3 ½" below knee.

4,80,000

(20)

For amputation below knee with stump exceeding 3 ½" but not exceeding 5.

4,00,000

(21)

Fracture of Spine with paraplegia.

4,00,000

(22)

For amputation below knee with stump exceeding 5.

3,20,000

(23)

For loss of one eye without complications the other being normal.

3,20,000

(24)

For amputation of one foot resulting in end-bearing.

2,40,000

(25)

For amputation through one foot proximal to the metatarso-phalangeal joint.

2,40,000

(26)

Fracture of Spine without paraplegia.

2,40,000

(27)

For loss of vision of one eye without complications of disfigurement of eye ball, the other being normal.

2,40,000

(28)

For loss of all toes of one foot through the metatarso-phalangeal joint.

1,60,000

(29)

Fracture of Hip-joint.

1,60,000

(30)

Fracture of Major Bone Femur Tibia Both limbs.

1,60,000

(31)

Fracture of Major Bone Humerus Radius Both limbs.

1,20,000

(32)

Fracture of Pelvis not involving joint.

80,000

(33)

Fracture of Major Bone Femur Tibia one limb.

80,000

(34)

Fracture of Major Bone Humerus Radius Ulna One limb.

64,000

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